2-1 Personal Information

Point!

1 Personal Information

(1) ([1]**Personal information**) : Any data or information related to a natural person who can be identified directly or indirectly by linking it with other data.
<Example> name, address, date of birth, gender, phone number, national ID number, passport number, driving license, or any data that identifies psychological, health, economic identity.

- Among the different types of personal information, name, address, date of birth, and gender are referred to as the ([2]**Four Basic Items**), while numbers such as those on passports, driver's licenses, or National IDs are known as ([3]**Personal Identification Codes**).
- Information that requires careful handling to prevent prejudice and other disadvantages (for example, race, creed, social status, medical history, and criminal record) is referred to as ([4]**Special Care-Required Personal Information**).

(2) ([5]**Act on the Protection of Personal Information**) : A law that stipulates the proper handling of personal information.

(3) Provision of Personal Information to Third Parties

- The Act on the Protection of Personal Information states that one cannot provide the personal information of an individual to a third party without the individual's consent. However, in the following cases, it is permissible to provide personal information without obtaining the individual's consent.
  - [1] When provision is based on laws and regulations.
  - [2] When necessary for the protection of national security or public interest.
  - [3] When necessary for the protection of human life, body, or property.
  - [4] When especially necessary for public health or the healthy development of children.
  - [5] When cooperating with national or local governments, etc.

2 Protection of Privacy and Image Rights

(1) ([6]**Right to Privacy**) : The right of an individual to protect personal information that the individual does not want others to know.

(2) ([7]**Image Rights**) : The right of an individual to prevent others from photographing or using their face or appearance without permission.

(3) ([8]**Publicity Rights**) : A right that protects the economic interests of celebrities in their likeness, among other things.

*These rights are recognized not by law but through court ([9]**precedents**).

3 Protection of Personal Information in Corporations and Organizations

(1) ([10]**Privacy policy**) : A policy that stipulates how companies and organizations manage personal information.

(2) ([11]**Personal Data Protection Center License**) : the license obtained by companies from the regulatory authority (Personal Data Protection Center) to ensure compliance with the law.

(3) ([12]**Prior Approval System**) : A method in which a provider does not collect user data or offer a service to a user unless prior consent is given.

(4) ([13]**Opjection System**) : A method in which a service provider continues to offer a service to the user until the user requests the provider to discontinue the service.

Warm Up

Answer the following questions.

(1) Choose all the items from **A** to **D** that can be considered personal information as defined by the Act on the Protection of Personal Information.

A Email address **B** Fingerprint data **C** Address of a deceased person

D Passport number

(2) The following statements **A** to **D** describe personal information and privacy. Mark "○" if the statement is appropriate, and "×" if it is inappropriate.

A If everyone in a photo is your family member, you can upload group photos to social media without permission.

B Posting information such as the economic status or health status of a person on social media without his premession, thinking it might aid the investigation, is not a violation of the Act on the Protection of Personal Information.

C Although a driver's license number or a National ID Number consists merely of a sequence of digits, it can be considered personal information because it allows for the identification of an individual when combined with other information.

D It is acceptable to print a photo of your favorite celebrity on a T-shirt yourself and sell the T-shirt online.

Explanation

(1) Personal information refers to information concerning a living individual. Information about deceased individuals is not considered to be personal information. Therefore, **A**, **B**, and **D**

(2) **A** Uploading a person's photo to the internet or social media without their permission constitutes a violation of image rights. Therefore, ×

B Past criminal records and medical histories are referred to as special care-required personal information. As a general rule, they should not be provided to third parties without the individual's consent. Therefore, ×

C Personal information refers to data related to a living individual and includes information that can be used to identify an individual when combined with other information. Therefore, ○

D The likeness of famous people (such as celebrities or athletes) holds economic value, and one should not sell that likeness for profit without permission. Therefore, ×

Try

1 Answer the following questions.

(1) What is the term for information related to living individuals?

(2) From among (1), what is the term for the collective reference to name, address, date of birth, and gender?

(3) From among (1), what is the term for the numerical information found in items like passports, driver's licenses, and My Number cards?

(4) Since the likenesses of celebrities hold economic value, celebrities possess rights recognized to protect the economic benefits arising from their popularity. What is the term for these rights?

(5) What is the term used for the licenses granted to companies or organizations that implement appropriate protection measures for personal information?

(6) Choose the appropriate terms for [1] and [2] to complete the following sentence.

> When providing services to users, the system where services are not provided without prior consent is called the ([1]) system, while the system where services continue to be provided until the user requests the provider to stop is called the ([2]) system.

2 Answer the following questions.

(1) Choose one correct statement regarding personal information from the options **A** to **C** below.

A Personal information is protected until 50 years after the individual's death.

B Although your passport, driver's license, and National ID Number information are merely sequences of numbers, they still constitute personal information.

C The names, addresses, dates of birth, and gender of individuals that have already been published in newspapers or on the internet do not constitute personal information.

(2) Choose one correct statement regarding image rights from the options **A** to **D** below.

A The right of an individual to protect personal information that the individual does not want others to know.

B The right to protect economic benefits arises from the fact that the likeness of a celebrity possesses economic value.

C The right of an individual to prevent others from photographing or using their face or appearance without permission.

D The individual's right to the protection of literary, artistic, and scientific works.

(3) The following statements **A** to **D** describe personal information and privacy. Mark "○" if the statement is appropriate, and "×" if it is inappropriate.

A Taking a photo of a portrait of a famous person that you drew yourself and saving it on your smartphone does not violate the Act on the Protection of Personal Information.

B If a person is your friend, you can upload a photo of their face to social media without permission.

C The transfer of personal information of an individual to third parties without the consent of the individual is prohibited.

D It's permissible to sell fan merchandise of your favorite celebrity if you create it personally.

Exercise

1 From the following options **A** to **L**, choose the phrases that best fit into the blanks [1] to [6].

In the context of the Act on the Protection of Personal Information, ([1]) refers to information that can identify a living individual. Among these, important pieces of information that are also used for identity verification are referred to as the four basic items, which include ([2]), ([3]), ([4]), and ([5]). Furthermore, information that can identify an individual when combined with other information is also considered to be ([1]). Examples include ([6]), which refers to number-based information such as driver's license numbers and My Number.

A	Name	**B**	Address	**C**	Date of birth	**D**	Age
E	Gender	**F**	Telephone number	**G**	Email address	**H**	Anonymized information
I	Personal Identification Code	**J**	Special Care-Required Personal Information	**K**	Personal information	**L**	Privacy

2 Answer the following questions.

(1) Choose all the items from **A** to **D** that can be considered personal information as defined by the Act on the Protection of Personal Information.

- **A** A nickname for use on social media made from letters and numbers
- **B** Information such as the names and addresses of foreigners residing in foreign countries
- **C** Information such as weather conditions and air tempreture.
- **D** Biometric data such as iris and fingerprints.

(2) Choose one correct statement regarding publicity rights from the options **A** to **D** below.

- **A** The right of an individual to protect personal information that the individual does not want others to know.
- **B** A right that protects the economic interests of celebrities in their likeness, among other things.
- **C** The right of an individual to prevent others from photographing or using their face or appearance without permission.
- **D** The right to protect one's thoughts and feelings as expressed in the form of a work.

(3) The following statements **A** to **D** describe behavior related to personal information and privacy. Mark "○" if the statement is appropriate, and "×" if it is inappropriate.

- **A** I received an email asking to verify my personal information from an unknown email address, so I replied to the contact provided in the email.
- **B** I shared widely on social media the personal information of an individual rumored to be the perpetrator in a crime. I thought my action would aid in the criminal investigation.
- **C** After paying the admission fee and entering the concert, I took a photo of the singer with my smartphone and posted it on social media.
- **D** After destroying the list of final test scores with a shredder, I discarded of the shredded documents as combustible waste.

2-2 Intellectual Property Rights

Point!

1 Intellectual Property Rights

([1]**Intellectual Property Rights**) : Rights that protect creations and ideas generated by human intellectual activities. These rights are mainly divided into Industrial Property Rights and Copyrights.

2 Industrial Property Rights

(1) ([2]**Industrial Property Rights**) : Rights primarily related to the manufacturing of industrial or commercial products. This follows the principle in which rights come into effect once an application is filed with and registered by the ([3]**Egypt Patent Office**). This is known as the ([4]**Formality**) Principle.

(2) Types of Industrial Property Rights

Name	Subject of Rights	Protection Period
([5]**Patent Rights**)	Rights to advanced technological ideas and inventions.	20 years from the application
([6]**Utility Model Rights**)	Rights to the shape or structure of a product.	7 years from the application
([7]**Design Rights**)	Rights to a design, such as the shape and patterns of a product.	10 years from the application (to be renewed once every 5 years)
([8]**Trademark Rights**)	Rights related to items such as product names, logos, text, and sound.	10 years from the registration (Updated)

3 Copyrights

(1) ([9]**Copyrights**) : Rights related to creative activities in the arts and cover works such as novels, movies, paintings, photographs, music, and computer programs. It follows the ([10]**Non-Formality**) Principle, under which rights are established at the moment a copyrighted work is created, regardless of whether the creator is an amateur or a minor.

(2) ([11]**Copyright Act**) : A law that protects the rights of creators.

<Rights of Creators>

[1] ([12]**Moral rights of creator**) : Rights that protect the personal interests of the creator.

[2] ([13]**Copyrights (property rights)**) : Rights that protect the economic interests of the creator.

(3) ([14]**Neighboring Rights**) : Rights that arise for individuals or entities who communicate or transmit copyrighted works. Granted to performers such as singers, directors, and actors, as well as record companies and broadcasting organizations.

(4) Copyright protection period : The lifetime of the creator plus ([15]**50**) years after their death.

(5) Copyright infringement : As a general rule, when reproducing someone else's copyrighted work or using it on a website, it is necessary to obtain ([16]**permission**) from the creator. Using a work without permission would constitute a ([17]**copyright infringement**).

Warm Up

Answer the following questions.

(1) Insert the appropriate terms for [1] to [6] to complete the following sentence.

> The rights granted to a creator when they produce something through intellectual activity are called ([1]). ([1]) are primarily composed of ([2]), which contribute to the development of industry, and ([3]), which contribute to the development of culture. ([2]) are established under the ([5]) in which rights are granted upon approval after filing a notification with ([4]). On the other hand, ([3]) do not require reporting or registration, and the rights are granted at the time of creation. Furthermore, the protection period for ([3]) is ([6]) years after the death of the creator.

(2) For the following statements concerning the laws and rights of information society, mark "○" if the statement is appropriate, and "×" if it is incorrect.

[1] Posting Taha Hussein's novel "The Days" on your website without permission does not constitute copyright infringement.

[2] Downloading music or videos that are for sale while knowing that they have been illegally uploaded constitutes copyright infringement.

[3] Posting the audio data of Beethoven's Symphony No. 5 "Fate" played exceptionally well by someone else on social media does not constitute copyright infringement.

[4] Trademark rights conclude 10 years after registration with the Patent Office, but the rights can be maintained through renewal procedures.

Explanation

(1) [1] Intellectual Property Rights [2] Industrial Property Rights [3] copyrights
[4] Egypt Patent Office [5] Formality Principle [6] 50

(2) [1] Novelists like Taha Hussein can be used copyright-free as over 50 years have passed since their death. Therefore, ○

[2] Downloading music or movies while knowing they have been illegally uploaded constitutes copyright infringement. Therefore, ○

[3] Musical compositions by Beethoven, Mozart, and similar composers are no longer under copyright protection, as more than 50 years have passed since their death. However, performers and record companies have neighboring rights, so it is necessary to verify the usage permissions. Therefore, ×

[4] Trademark rights conclude 10 years after registration with the Patent Office, but the rights can be maintained for an additional 10 years through renewal procedures. Therefore, ○

Try

1 Answer the following questions.

(1) From the following terms **A** to **H**, choose the terms that best fit into the blanks [1] to [4].

> Rights related to creations resulting from human intellectual activity are collectively referred to as ([1]). ([1]) can be largely divided into Industrial Property Rights and ([2]).
> A copyrighted work is something created through academic or artistic creative activity. Copyrighted Works include novels, scripts, ([3]), musical compositions, works of art, buildings, photographs, computer programs, etc. Illustrations or web pages that you create yourself are also considered copyrighted works. In principle, to use someone else's copyrighted work, you are required to obtain permission from the creator. Using a work without permission will be considered ([4]) and may be subject to penalties.

A	Copyrights	**B**	Intellectual Property Rights	**C**	Patent Rights	**D**	Utility Model Rights
E	Movies	**F**	Ideas	**G**	Copyright Infringement	**H**	Patent Infringement

(2) From the following terms **A** to **H**, choose the terms that best fit into the blanks [1] to [3].

> Industrial property rights include rights such as ([1]) rights, which protect designs like those of automobiles, and ([2]) rights, which protect inventions such as ideas for shapes that improve water drainage in washing machines. To receive protection as an industrial property right, it is ([3]) to file an application.

A	Utility model	**B**	Trademark	**C**	Creative works	**D**	Design
E	Patent	**F**	Unnecessary	**G**	Necessary		
H	Necessary when obtaining rights for commercial purposes						

2 Read the following passage and answer the questions.

> As a general rule, it is necessary to obtain permission from the creator when reproducing someone else's copyrighted work or publishing it on a website. Using the work without permission constitutes (A)copyright infringement. However, under certain conditions, it is possible to freely use a copyrighted work without obtaining permission from the creator. For example, works that have passed more than (B) years after the death of the creator fall under this category.

(1) For the underlined section A, choose all statements that apply as copyright infringement, and answer using the letters.

A I recorded a movie broadcast on television and distributed it.
B I posted Taha Hussein's novel "The Days" on my website without permission.
C I copied an illustration that was distributed for free and sold the copies at a low price.
D Even though I knew that a video was illegally uploaded, I downloaded it solely for personal use.

(2) Answer by writing the appropriate number in blank B.

Exercise

1 Answer the following questions.

(1) Among intellectual property rights, what is the term for the rights that pertain to the manufacturing of industrial and manufactured products?

(2) Out of the following statements **A** to **D**, choose all statements that are incorrect in relation to copyrights.

A Copyrights are granted through recognition upon application to the Patent Office.

B Copyrights are related to the quality of a work.

C Copyrights are maintained for 50 years after the death of the creator.

D Copyrights arise even if the creator is a minor.

(3) What is the term for the rights that protect the marks used to distinguish goods and services?

(4) What is the term for the rights that protect inventions of things or methods?

(5) For the following statements concerning the laws and rights of information society, mark "○" if the statement is appropriate, and "×" if it is incorrect.

[1] A design right is recognized for ideas related to the technical aspects of a product's shape or structure that can be immediately implemented.

[2] Copyrights tend to be recognized less frequently for creations by amateurs or children, as copyrights are often related to the quality of the work.

[3] Recording a movie broadcast on television and then distributing that movie constitutes a copyright infringement.

[4] The protection period for a patent right is 20 years from the date of application.

[5] There is no problem with posting the full text of Sadeq Elrafaey's "The Pen Inspiration" on one's blog without obtaining permission if you are very fond of its prose.

2 Read the following passage and answer the questions.

> There are four types of Industrial Property Rights: Patent Rights, Utility Model Rights, Design Rights, and (A) Rights. Among these, Utility Model Rights are rights pertaining to ([1]). Additionally, (A) rights refer to the rights concerning product names or logos, and the protection period is (B) years from the date of registration.

(1) Answer by filling in blank A with the appropriate term.

(2) Answer by filling in blank B with the appropriate number.

(3) Choose the most appropriate phrase to fill in blank [1] from the options **A** to **D** below, and answer using the letters.

A Reproduction or sale of products

B Conveyors of products

C Product design

D Ideas for the structure and shape of a product

2-3 Utilization and Disclosure of Information

Point!

Utilization and Disclosure of Information

(1) Purpose of Copyright
A copyright aims to contribute to cultural development by ensuring the ([1]**fair use**) of copyrighted works and the ([2]**protection of rights**).

(2) Exceptions
Under the purpose of copyright, there are exceptions where the copyright can be limited to allow use without obtaining permission from the copyright holder.
<Example> Reproduction for private use, reproduction within educational institutions, non-profit performances, etc.

(3) ([3]**Quotation**) : The act of using a portion of another person's copyrighted work in your own copyrighted work.
If certain requirements are met, portions of a copyrighted work can be quoted without obtaining permission from the author.
<Quotation Methods and Rules>
[1] Your own copyrighted work takes precedence, while the quoted work is subordinate.
(Your own copyrighted work is the subject.)
[2] There must be a necessity to engage in quotation.
[3] Ensure that the quoted material is clearly identifiable by enclosing it in quotation marks.
[4] The source is clearly specified.
[5] Do not alter the quoted material.

(4) Setting the duration of protection : The economic rights of the author expire ([4]**50**) years after the death of the creator.

(5) ([5]**Creative Commons License**) (CC License) : A mark indicating the conditions for using copyrighted works.
<Types of Creative Commons Licenses>

Mark	Condition	Content
	([6]**Credit to creator**) (BY)	Display the title of the work and name of the creator.
	([7]**Non-commercial**) (NC)	Do not use for ([8]**commercial**) purposes.
	([9]**No derivatives**) (ND)	Do not alter the original copyrighted work.
	([10]**Same terms for adaptations**) (SA)	Publish under the same combination of licenses as the original work.

Warm Up

Answer the following questions.

(1) Choose all statements that allow for the use of copyrighted works without permission as an exception from the options **A** to **D** below, and answer using the letters.

A I copied the materials and distributed them to students in my social studies class.

B I copied commercially available music CDs and distributed them to friends.

C We charged an admission fee and performed a K-pop medley at our band's regular concert.

D I quoted a section of a book when writing a report.

(2) Choose all statements that correctly describe the method and rules of quotations from the options **A** to **D** below, and answer using the letters.

A Even when quoting, it is always necessary to obtain permission from the creator.

B There is a necessity to quote, and the portion being cited is subordinate.

C Clearly indicate the quoted material by enclosing it in quotation marks.

D Regardless of the reason, you must not modify the material you are quoting.

(3) When publishing a photo you took on a web page, you want to allow others to use it on the conditions that "the name of the photographer and the title of the work are displayed" and "the work is not altered." At this time, choose all the Creative Commons licenses that should be displayed in combination from the options **A** to **D** below, and answer using the letters.

A 

B 

C 

D 

Explanation

(1) **A** The use of copyrighted works in the course of teaching falls under reproduction in educational institutions and works can therefore be utilized without obtaining permission from the copyright holder.

B Copying commercially available CDs and distributing them to friends does not qualify as reproduction for personal use and constitutes copyright infringement.

C Since an admission fee is charged and the usage does not fall under the condition of a performance not for profit, this usage constitutes a copyright infringement.

D In the case of quotation, a copyrighted work can be used in one's own creation without obtaining permission from the creator of the other work.

Therefore, **A** and **D**

(2) **B**, **C**, **D**

(3) **A** represents display, **B** represents non-commercial, **C** represents no derivative works, and **D** represents same terms for adaptations.

Therefore, **A** and **C**

Try

Answer the following questions.

(1) Insert the appropriate terms in blanks [1] and [2] to complete the following sentence.

> A copyright aims to contribute to cultural development by ensuring the ([1]) of copyrighted works and the ([2]) .

(2) For each of the following statements **A** to **D**, mark "○" if the statement does not constitute copyright infringement, and "×" if it is infringement.

A The sheet music for a regular concert was copied and distributed to all members of the wind orchestra.

B At a school cultural festival, the drama club performed a play using a script selected from a collection of commercially-available scripts.

C A Spanish work written by a Spanish person was translated into Arabic and published without obtaining permission from the copyright holder, as the languages were different.

D In a report assigned for class, a student cited a portion of statistical data from a web page.

(3) Choose all statements that correctly describe the method and rules of quotations from the options **A** to **D** below, and answer using the letters.

A Even in the case of a quotation, permission from the copyright holder must always be obtained.

B Clearly indicate quotes through measures such as enclosing the quoted materials in quotation marks.

C If the quoted material is clearly distinguished, it is not necessary cite the source from which the quoted material was taken.

D Quoted texts must not be altered, regardless of one's own argument.

(4) The following table is a summary of Creative Commons licenses. Complete the table by filling in the blanks [1] to [4] with the appropriate terms.

Mark	Condition	Content
	([1])	Display the title of the work and name of the creator.
	Non-commercial	Do not use for ([2]) purposes.
	([3])	Do not alter the original copyrighted work.
	([4])	Publish under the same combination of licenses as the original work.

(5) Choose one statement that correctly represents the conditions indicated by the Creative Commons license shown on the right from the options **A** to **D** below. Answer using the letters.



A Display the name of the creator and do not use the work for commercial purposes.

B Display the name of the creator and do not alter the original work.

C Do not use the work for commercial purposes and do not alter the original work.

D Do not use the work for commercial purposes. Also, if you modify the work, publish it under the same license as the original work.

Exercise

1 Answer the following questions.

(1) Choose the term that best fit into the blanks [1] to [3] from the options **A** to **D** below, and answer using the letters.

> If you want to use another person's copyrighted work, you must clarify the purpose and method of use, as well as the place where it will be published, and obtain permission from the copyright holder. However, usage is permitted without obtaining permission in cases such as ([1]) in educational institutions, reproduction for ([2]) use, and ([3]) from texts.

A Quotation **B** For-profit **C** Personal **D** Classes

(2) Choose the one that does not constitute copyright infringement from the options **A** to **D** below, and answer using the letters.

A I made a copy of a commercially purchased music CD and gave it to a friend.
B I listen to music by recording commercial music CDs that I have purchased onto my smartphone.
C I shared and disseminated on social media the audio data of a popular artist's song.
D I copied an illustration that is distributed for free and sold the copies at a low price.

(3) Choose all statements that correctly describe the method and rules of quotations from the options **A** to **D** below, and answer using the letters.

A There is a necessity to engage in quotation.
B You cannot quote without obtaining permission from the copyright holder.
C Do not alter quoted material without permission.
D The source is clearly specified.

(4) The following table is a summary of Creative Commons licenses. Complete the table by filling in the blanks [1] to [4] with the appropriate terms.

Mark	Condition	Content
	([1])	Display the title of the work and name of the creator.
	([2])	Do not use for commercial purposes.
	([3])	Do not alter the original copyrighted work.
	([4])	Publish under the same combination of licenses as the original work.

(5) When publishing a photo you took on a web page, you want to allow others to use it on the conditions that "the name of the photographer is displayed" and "the work is not used for commercial purposes." At this time, choose all the Creative Commons licenses that should be displayed in combination from the options **A** to **D** below, and answer using the letters.

A  **B**  **C**  **D** 